

Ikram v. State of U.P.

Allahabad High Court · Division Bench · 25 July 2014 · Criminal Misc. Writ Petition No. 12579 of 2014 · **FIR quash refused; CrPC 41/41-A arrest directions; compounding under Supply Code 2005.**

HEADNOTE

An FIR under s.135 of the Electricity Act that discloses a cognizable offence will not be quashed. Where the alleged offence cannot attract a sentence exceeding seven years, arrest must comply with CrPC s.41(1)(b) read with s.41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ikram filed a criminal miscellaneous writ petition seeking to quash an FIR dated 28 May 2014, Case Crime No. 362 of 2014, registered under Section 135 of the Electricity Act at Police Station Deoband, District Saharanpur. He had not been arrested. Counsel submitted that even if the charges were proved the offence could not attract a sentence exceeding seven years, so arrest should not be mechanical, and that the offence was also compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR quash, arrest safeguards and compounding

HOLDING

An FIR under s.135 of the Electricity Act that discloses a cognizable offence will not be quashed at the writ stage. Because none of the alleged offences can attract a sentence exceeding seven years, any arrest must comply with CrPC s.41(1)(b) read with s.41-A. If the offence is compoundable, the petitioner may seek the remedy provided under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy An FIR under s.135 of the Electricity Act that discloses a cognizable offence will not be quashed. Where the alleged offence cannot attract a sentence exceeding seven years, arrest must comply with CrPC s.41(1)(b) read with s.41-A.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE IS COMPOUNDABLE ON THESE FACTS, AND ANY COMPOUNDING UNDER THE ELECTRICITY SUPPLY CODE, 2005

¶ 1